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History of Amendments in Indian Constitution

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13.1 Main Amendments in Constitution

- ▶ As our society and its needs are ever-evolving, if the constitution does not keep pace, it will become redundant or lead to a break down of Law and order.
- ▶ First Amendment did in 1951.
- ▶ So, as an advancing and subsisting document, numerous amendments have been made to it till 2019.
- ▶ Amendments to the Constitution require a special majority of 'two-third, members present and voting to be passed in Parliament.
- ▶ We would like to discuss a few important amendments hereinafter

Abolition of states according to classes and the introduction of Union Territories and reorganization of states by language (7th Amendment Act, 1956)

- ▶ Abolished the existing classification of states into four categories i.e., Part A, Part B, Part C and
- ▶ Part D states, and reorganized them into 14 states and 6 union territories.
- ▶ Extended the jurisdiction of high courts to union territories.

Provided for the establishment of a common high court for two or more states.

The mini-constitution inserted socialism and Secularism in the preamble, a provision on fundamental (42nd Amendment 1976)

- ▶ Secularism and socialism were inserted to restore the faith of the nation that minorities would be safe and not be exploited by the rich.
- ▶ Also, the rich would not be allowed to dominate, the country's economy.
- ▶ The main reason to add socialism was to promote social as well as economic equality in the country.
- ▶ Similarly, the main reason to add secularism was to imply that there was no official state religion of the country.

Right to Property deleted from the list of Fundamental Rights (44th Amendment 1978)

- ▶ The Fundamental Right to property in India was removed to permit the reorganization of land and to facilitate land acquisition for developmental projects.
- ▶ This was carried out by the Indian Government at that time since it was not affluent enough to pay people whatever they demanded their land.

Voting age reduced from 21 to 18 (61th Amendment 1989)

- ▶ Prime Minister Rajiv Gandhi explained it as an expression of the government's full faith in the youth of the country
- ▶ The youth are aware and informed and thus, lowering the voting age would provide an opportunity for the unrepresented youth of the nation to vent out their feelings and motivate them to become a part of the political process eventually.

Introduction of Panchayati raj (73th Amendment 1992)

- ▶ Granted constitutional status and protection to the Panchayati raj institutions. For this purpose, the Amendment has added a new Part-IX entitled as 'the panchayats' and a new Eleventh Schedule containing 29 functional items of the panchayats.

Introduction of Nagarpalika and Municipality (74th Amendment 1992)

- ▶ During the early 90s local bodies in states had become ineffective in holding regular elections or the maintenance of public infrastructure, electricity and water supply.
- ▶ Thus, an immediate need to introduce effective authorities to execute the numerous plans and programs was felt by the government.
- ▶ Granted constitutional status and protection to the urban local bodies. For this purpose, the Amendment has added a new Part IX-A entitled as 'the municipalities' and a new Twelfth Schedule containing 18 functional items of the municipalities

Free and compulsory education to children between 6 to 14 years (86th Amendment 2002)

- ▶ one of the most important amendments, the government directed the private school to take 25% of their class strength from economically.
- ▶ weaker or disadvantaged groups of society through a random selection process with the help of the government funding'
- ▶ this initiative was taken to try and provide elementary education to all.
- ▶ Moreover, the local and state governments were made to ensure its proper implementation.

13.2References

M Laxminath "Indian Polity" 4th Edition 2013 Tata McGraw Hill Publication.

Durga Das Basu" Introduction to Constitution of India"

Tejpal Sheth" Indian Constitution"1st Edition 2018 Mahajan Publication.